

The Claremont City Council held a meeting on Wednesday, October 27, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:34 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois (via Zoom, home, alone)
Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to accept the minutes of the October 13, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - abstain

Motion carried 8-0, with 1 abstain.

MAYOR'S NOTES

- Vote next Tuesday, November 2, 8:00 a.m. to 7:00 p.m.
- November 1, last day to apply for, and return absentee ballots, in person
- November 2 is the last day the City Clerk's office will accept absentee ballots returned by mail
- Thursday, October 28, 6:00-8:00 p.m., CSB Community Center, Meet the Candidates event
- TLC Recovery Programs is seeking monetary donations, rather than donations of winter gear, for its Get Warm Program

CITY MANAGER'S REPORT

- **Council Questions** –
 - At the City Council Meeting on October 13, 2021, Councilor Contois asked about the age of the City's water tanks and what their lifespan is. Public Works Director Alex Gleeson has provided the following answer:

How old are the tanks?

Bible Hill Water Storage Tank was built in 1980 (welded steel)

Maple Heights aka Moody Tank was also built in 1980 (welded steel)

What is the useful life expectancy of them?

The life of a tank depends on what they are made of. In the case of these two tanks, they are welded steel which has an expected life of around 100 years with proper maintenance (cleaning, inspections, painting/coating). The city has historically done inspections every 5 years or so and we just had inspections done on all the tanks, which was completed a few weeks ago by MIDCO Diving. We should have a detailed report of their findings in the coming months.

- **Central Collections** – As you know, we are down to two full-time employees in Central Collections. Because of this staffing shortage, we have made the decision to close the office on Wednesdays so staff can complete paperwork and other duties that need to be addressed, with minimal interruptions. We would like to remind the residents of Claremont that bills can be paid through the drop box next to Central Collections' door and online. Staff continues to interview potential candidates, and we are hopeful that we will be able to make a job offer in the near future. We are also exploring options for contracting part-time help in order to keep up with demand, until positions can be filled.

Tomorrow, Claremont's Public Works will host a networking event for Public Works Directors to be put on by UNH (University of NH).

- **Utility Values** – The City of Claremont has received our utility valuation from Mr. Sansoucy. In this valuation was an unanticipated drop in value from \$2,100,000 to

\$1,272,800 for the Great River Hydro parcel. This drop in value was offset by other valuations, causing our utility values to remain relatively flat, going from \$44,526,500 in 2020 to \$44,699,700 (equalized) in 2021.

Great River Hydro has appealed their valuation from 2019, and 2020, and the City is currently in negotiations for a possible settlement. I will keep the City Council advised as we move through this process.

The City still plans on submitting the MS-1 on or before November 1, 2021.

- **Fall Clean-up-** The fall clean-up program in the City of Claremont will operate for one week beginning Monday, November 1, 2021 through Friday, November 5, 2021. Leaves and grass must be placed in compostable paper bags and left at the curbside by 7:00 am on Monday, November 1, 2021. Per the City Council policy adopted on May 12, 2004, the Public Works Department will no longer accept or pick up leaves that are not in paper, biodegradable bags. After November 5th, Claremont citizens may bring leaves, bagged in compostable biodegradable bags, to the Transfer Station on Tuesdays & Saturdays at no cost.
- **Moody Building-** As many of you may have already heard, Chinburg Properties has purchased the Moody building. In talking with Chinburg's staff, they are also looking at other buildings to potentially purchase in Claremont. This is an exciting time in Claremont as the City continues to draw interest from developers, and many projects are under way in the City.
- **COVID-19 Update** –At the time of this report, Claremont has 117 active cases. Sullivan County's infection rate has decreased from 1.2 to 1.04.

At this time, the interactive maps are down. The infection rate for Claremont has dropped below 1.

The State continues to operate a COVID-19 testing site at River Valley Community College (1 College Pl, Claremont, NH 03743). This site is open Monday through Friday 9am - 3pm, and is free to those needing to be tested.

The City continues to follow the CDC's current recommendation that all people, including those that are fully vaccinated, wear a mask in public indoor settings in areas of substantial or high transmission. Sullivan County, and all other counties in the state, continues to have substantial transmission rates.

- Regarding absentee ballots, 22 have been given out and as of yesterday, 12 have been returned.

- Councilor Matteau had asked about Building Code Board of Appeals and information was included in the Council packet. In the absence of a quorum of the Building Code Board of Appeals, appeals would be heard by the Zoning Board of Adjustment (ZBA). Those hearings are for interpretation of the Code.
- Comcast line extensions have been completed per the City's contract with Comcast for Piper Hill Road, Lewis Place, and Bible Hill Road. They have also completed an extension on Pappas Road, which was not a part of the contract.
- Regarding 24 Schmitt Street, the bank has rescheduled the auction to January 5th, 12 p.m. Code Enforcement officials are working with the bank to get more of the property cleaned up.

Councilor Matteau asked how applicants are made aware of the appeals process, if they have an issue. Mr. Morris said Chief Building Inspector Steve Coombs notified applicants who were upset, that there is an appeal process. Councilor Matteau said applicants should be made aware of the appeal process when they apply for the permit. Also, she has a problem with this going to the ZBA. She feels more needs to be done to populate the Board of Appeals. Councilor Koloski agreed with Councilor Matteau about the notification of the appeal process.

Councilor Koloski talked about the next negotiations with Comcast and that more attention should be paid to the services for City buildings. Mr. Morris said there have been some federal law changes, and that is something that was looked at. This Comcast agreement is for a number of years.

Councilor Demars suggested letting people know the Board of Appeals doesn't have a lot of activity, which might interest more people.

CITIZEN'S FORUM

Bill Limoges, Ward 3, is running for At-Large Councilor and he gave some information about himself including that he was born and raised in Claremont, and that he is a heating contractor.

Ray Hughes, Ward 2, said that he is running for an At-Large Council seat. He gave some information about himself including that he grew up in Claremont and that he moved back two years ago. He has owned property here since 2013, and he will be at the Meet & Greet tomorrow.

OLD BUSINESS

None.

NEW BUSINESS

Pleasant Street Update

Mr. Morris introduced Kevin McMahon from McFarland Johnson, who was joining the meeting via Zoom.

Mr. McMahon said the water main work has been going on for about one and a half weeks. The main is at the point where it can be charged and all services hooked up. The goal for the end of November is to have permanent pavement down, drainage in, and some parking for the winter.

Councilor Girard asked about change orders and what they were for. Mr. McMahon said there are a couple that are small. Some existing utilities were different than what was provided on the plans, water line was 8 inches instead of 6 inches. The main change order was for truck route signage. It's hard to plan for everything; the sewer line is 100 years old and water line is 50 years old. Councilor Girard asked how much was added for the truck route signage. Mr. McMahon said that it was about \$10,000, but they are looking to be under budget at the end.

Councilor Contois asked about the two sewer tie-ins to be done later. Mr. McMahon said there is a new sewer system going into the tattoo parlor, which won't affect anything permanently. The second is a new sewer service to the building at the intersection of School Street and Pleasant Street. This will separate the sewer from the roof drain.

Assistant Mayor Damren asked what is to be done in the springtime to wrap this up. Mr. McMahon said the major thing is the reconstruction of sidewalks (i.e. temporary ramps, rear access to buildings for a day or two). Concrete will be poured about 8 feet from the buildings and then beyond that to the curb will be pavers.

Dispatch Equipment Presentation

Mr. Morris said that CTA Consultants LLC has been chosen for the Dispatch Equipment Upgrade project, and they have completed their initial study and have made an initial recommendation.

Cheryl Giggetts, principal Consultant and owner of CTA Consulting (joined the meeting via Zoom), and Mark Cady, CTA Consultants gave a PowerPoint presentation.

- Claremont Radio System
- Agenda
- Company Overview
- Mark
- Accomplishments

- Current Radio Systems
 - Fire operates a VHF analog conventional system
 - Police operates a VHF analog conventional system
 - Public Works operates a VHF analog conventional system
 - EMS (Golden Cross Ambulance) operates a VHF analog conventional system
- Coverage
 - All 4 are similar
 - Looking to increase coverage
- Alternatives Summary
 - Do nothing
 - Does not replace end-of-life equipment
 - Does not improve coverage
 - Single Site with DVRs
 - Reuse Green Mountain site
 - DVRs greatly improve portable coverage
 - Two Site System
 - Reuse Green Mountain and add second site (new)
 - Improve portable talk-out coverage
 - New VHF frequencies will be very difficult to license
 - Requires additional microwave link between tower sites
- Radio Alternatives – Single Site
 - 3-Channel VHF P25 conventional radio system
 - P25 consoles/subscribers
 - Digital vehicular repeaters
 - For the next 15 years
- Radio Alternatives – two sites
 - 3-Channel VHF P25 conventional radio system
 - P25 consoles/subscribers
 - New microwave link between sites
- Recommendations
 - It is CTA's opinion that a Single Site with DVRs is the best fit for Claremont, as it provides:
 - Enhanced coverage
 - Enhanced interoperability
 - Enhanced in-building coverage
 - Cost efficient
- Conceptual Design
 - Utilizing single site with DVRs, fills coverage gaps (Green Mountain)
 - Utilizing DVRs, balanced coverage for portable talk-in talk-out
 - Achieve 95% public safety mobile and portable outdoor coverage
- Conceptual Design – Single Site
 - Digital vehicular repeaters – balanced talk-in, talk-out
- Conceptual Design Phased Approach
 - Phase 1

- Replace all existing end of life infrastructure equipment with P25 capable equipment
 - Replace Dispatch consoles
 - License 1-2 new VHF frequency pairs/modify existing licenses
- Phase 2
 - Replace existing non-P25 subscribers
 - Purchase P25 conventional features
- Phase 3
 - Upgrade infrastructure to P25
 - Purchase and install P25 software licenses
 - Cutover system from analog to p25
- Step 4
 - License new DVR frequencies
 - Purchase and install DVRs in first responder vehicles
- Opinion of Probable Costs (1 Site, VHF P25 Conventional, 3 Channels & Subscribers)
 - Competitive Estimate \$1,853,500
 - Maintenance/Year \$62,100
 - Phase 1 \$495,200
 - Phase 2 \$578,100
 - Phase 3 \$332,500
 - Phase 4 \$447,700
- Next steps
 - Prepare functional specifications document
 - Publish RFP
 - Evaluate vendor proposals
 - Select vendor
 - Implement phased approach

Ms. Giggetts said a vendor could be under contract by the end of next summer and the project could be finalized by the following summer (2023).

Mr. Cady said the bid will go out with all four phases at once. For the current system, the repeaters are in excess of 15 years old; Police consoles are 20+ years old; and most of the equipment is past its end of life.

Ms. Giggetts said that usually vendors will hold their price for a year, and it will be put into the contract that any increases will be no more than the CPI.

There was a discussion about repeaters. Mr. Cady talked about BDAs (Bi-Directional Amplifiers) and that they can be installed in buildings, if needed.

There was a discussion about other communities being dispatched through Claremont. Mr. Morris said Newport has moved forward with their own system. Right now, the focus is on the Sheriff's Department; this is scalable.

Pre-Audit Discussion

Mayor Lovett talked about a pre-audit letter she had received and said that if there were no objections from the Council, she will sign it. There were no objections.

Tammy Webb, Audit Manager at Vachon Clukay Co., gave a brief overview of the audit which will be conducted for the year ended June 30, 2021. The audit of the financial statements does not relieve Council or management of responsibilities. At the end of the audit, the auditors will communicate their findings, however, if they find significant findings (i.e. fraud), they will bring that to the Council's attention. She said she had sent out a governance questionnaire to all of the Councilors in order for them to share any concerns. She asked Councilors to complete and return them prior to the start of the audit.

Resolution 2022-12 Airport Terminal-Hangar Grant Change – Public Hearing

WHEREAS on July 24, 2019, the City Council accepted the NH Department of Transportation grant (Project SBG-02-11-2019 to demolish the current Claremont Municipal Airport terminal/hangar building and construct a New Terminal Building (approx. 1,920 SF) – Phase II) in the amount of \$795,492.00; and

WHEREAS over the course of the three and one-half year project, some changes were required including a vehicle security gate automatic control system; and

NOW THEREFORE BE IT RESOLVED that the City Council authorizes the City of Claremont to raise, appropriate and expend the sum of \$39,667.16 with \$35,700.44 (90%) to come from the FAA, \$1,983.36 (5%) to come from the NH DOT, and \$1,983.36 (5%) as the City's share of the project change, to be taken from the Airport Special Revenue Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Fire Chief Bryan Burr said the City of Claremont is lucky to have an airport. Air travel is becoming more cost effective. He sees the airport as becoming more of an asset to the City. The project is finished. The facility is state of the art and it meets all current building codes. The security gate had been problematic for quite some time.

When asked about the Airport Special Revenue Fund, Ms. Richmond said she suspects when all is said and done, the balance of the fund will be \$300,000 to \$400,000.

A motion was made by Councilor Koloski and seconded by Councilor Stone to adopt Resolution 2022-12 Airport Terminal-Hangar Grant Change.

Councilor Koloski read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0

Downtown Tax Increment Financing District Terms

Mr. Morris said the Tax Increment Finance District (TIFD) Advisory Board (Downtown) has single year terms and it is difficult to have people applying for seats every year. This is a request to have staggered year expiration dates. He said this board was not established by ordinance that we have been able to find. He thinks it was established through the TIFD.

There was discussion about two-year terms versus three-year terms, and for staggered terms. It was suggested to put in the application that if the board member moves out of the district, they would have to resign their seat. Mr. Morris said this can be looked at.

Councilor O'Hearne said he would agree to a two-year term, but not a three-year term. He thinks each new Council should have the authority to appoint the board, and he thinks this Council should have more information.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council hereby authorizes the City Manager, or his designees, to change the Tax Increment Finance District Advisory Board (Downtown) seat terms. Each board member shall hold their seat for the term of three (3) years. For the purpose of transition, Seat 1 will expire June 30, 2022; Seat 2 will expire June 30, 2023; Seat 3 will expire June 30, 2024; Seat 4 will expire June 30, 2022; and Seat 5 will expire June 30, 2023.

Roll call vote:

O'Hearne - no

Girard - yes

Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-1

Zoom Discussion

A motion was made by Councilor Stone and seconded by Councilor Girard that effective at the end of this meeting the Council will end the use of the Zoom platform for Council meetings for both the governing body and the public.

Councilor Koloski wanted to confirm that the meeting can still be streamed to Facebook. Mr. Morris said he would check.

Councilor Koloski suggested to amend the motion: **“that the Council can use the Zoom platform for out of town presenters which would be a cost savings to the City.” Councilor Stone accepted the amendment and Councilor Girard also accepted the amendment.**

Motion now reads: **A motion was made by Councilor Stone and seconded by Councilor Girard that effective at the end of this meeting the Council will end the use of the Zoom platform for Council meetings for both the governing body and the public, and that the Council can use the Zoom platform for out-of-town presenters which would be a cost savings to the City.**

Councilor Contois asked what the purpose would be to end the Zoom platform. He feels this is being directed toward him. He mentioned the CDC (Centers for Disease Control and Prevention), and referenced a legal opinion he had received in order to be able to participate in the Council meeting electronically. He asked if Zoom is not used, what happens to him.

Councilor Stone raised a Point of Order that the Council doesn't need to be lectured from the CDC.

Mayor Lovett said the issue is what is to be gained or lost by removing the platform.

Councilor Contois said the CDC recommendation is based upon science, saying to wear a mask, social distance, and get vaccinated. He has family members he must protect; he cannot get a breakthrough infection.

Mayor Lovett referenced NHMA Guidance on Public Meetings after the State of Emergency Ends (Posted June 11, 2021) stating that what Councilor Stone had requested was well within the

guidelines. She also referenced the report written by the Committee established via House Bill 108. Dated November 1, 2021, the report states, "With the backdrop of the recent experiences holding remote meetings during the pandemic and the dramatic increase in public participation at those meetings, the public and many public bodies strongly favor them." Given the findings and recommendations in this report, it is possible that changes will be made to RSA 91-A during the legislative session.

Councilors continued with the discussion including the amount of time it takes when there are technical issues and having to do a roll call for every vote.

A motion was made by Councilor Stone and seconded by Councilor Demars to move the question.

Roll call vote to move the question:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-2.

Roll call vote on the motion:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - no

Motion carried 6-3.

A motion was made by Councilor Stone and seconded by Councilor Matteau to restrict remote participation to a Council meeting. Remote participation is not to be used solely for a board member's convenience or to avoid attending a particular meeting in person. Any board member who is unable to physically attend a meeting of the board may make a request to the Mayor to participate in the meeting.

Councilor Koloski said he cannot support this. He doesn't think it is appropriate.

Assistant Mayor Damren clarified that anyone can make a request to the Mayor to participate by phone or other means. Councilor Stone clarified that it would be to allow a Councilor who is on vacation and out of the City, if the Mayor allows it. Mayor Lovett said phoning in has been allowed in the past and she thought this option was covered under Council rules. Councilor Matteau said the law says “may” allow.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Damren to table this to the next meeting.

Roll call vote on the motion:

O’Hearne - yes

Girard - yes

Demars - no

Damren - yes

Matteau - no

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 6-3.

Discussion about Transfer Station Ad Hoc Committee Members being appointed by the Council

A motion was made by Councilor Koloski and seconded by Councilor Stone to disband the Transfer Station Ad Hoc Committee.

Councilors discussed the motion saying that they wanted recommendations for ways to save money (privatization, closure, etc.). Mayor Lovett brought up the work of the previous Transfer Station Ad Hoc Committee and that those minutes should be reviewed. Councilor O’Hearne suggested waiting until the next Council is seated to discuss this.

Councilor Koloski amended his motion adding that the City Manager would come back to the Council with recommendations about the Transfer Station within 90 days. Councilor Stone accepted the amendment.

The motion now reads: **A motion was made by Councilor Koloski and seconded by Councilor Stone to disband the Transfer Station Ad Hoc Committee and that the City Manager would come back to the Council with recommendations about the Transfer Station within 90 days.**

Roll call vote:

O’Hearne – no

Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - no
Stone - yes
Lovett - yes
Motion carried 7-2.

There were three applicants for the Transfer Station Ad Hoc Committee and Mayor Lovett thanked them for their willingness to serve on the committee.

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

November and December Meeting Dates

Because of the holidays, and unless it is necessary to meet more often, Councilors agreed to have only the first meeting in November and December (with the exception of November 4, 2021, meeting to Canvass the Vote, which is a very short meeting).

Mayor Lovett distributed a paper copy of a Council Rule change. She said this is housekeeping; it was discussed in December 2020. Proposed language:

- To have a letter read into the record, either the originator of the letter or his/her designee must do so. No member of the Council shall read a letter from a citizen into the record.

Councilor Stone thought it would be prudent to wait for the next Council to be seated to discuss this. Mayor Lovett said she would like to finish what had already been started. Councilor O'Hearne said that it was presented at this meeting and discussion will occur at the next meeting.

Councilor Koloski would like to discuss the Police vehicle that was reported in the Police Chief's September 2021 Report. Mayor Lovett said it will be added to next agenda.

Councilor Koloski talked about the Citizen Complaint form on the City's website, that it is not easy to find, it's called Citizen Inquiry, it goes to an employee that is no longer here, etc. He asked if it should be an agenda item. Mayor Lovett thought that it might not be a bad idea to have this as an agenda item, if Council would like. Councilor Stone said the City Manager has heard all this and he believes Mr. Morris will take the appropriate action. Mr. Morris said the City can work on this.

Mayor Lovett said there is a bigger issue with the website. Councilor Matteau said the website is not user friendly and she has trouble navigating it. She thinks there should be a public discussion about it.

Councilor Koloski asked to make sure voting signs go out. Mr. Morris said that is being done.

Councilor Matteau thinks there should be weekly public announcements as long as Central Collections is closed on Wednesdays.

Assistant Mayor Damren asked Councilors to think about the long-term expensive projects that the City has before it right now (Airport Terminal Hangar Project, Pleasant Street Project will continue into next summer, new financial system – need to hear implementation schedule, Dispatch Project will go for a year and a half, etc.). He said that Staff is already stretched and it will be up to the Council and City Manager to keep an eye on those.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:15 p.m., a motion was made by Councilor Matteau and seconded by Councilor O’Hearne to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-2

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council